

The Contract Labour (Regulation And Abolition) Central Rules, 1971

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The Contract Labour (Regulation And Abolition) Central Rules, 1971

UNION OF INDIA

India

The Contract Labour (Regulation And Abolition) Central Rules, 1971

Rule THE-CONTRACT-LABOUR-REGULATION-AND-ABOLITION-CENTRAL-RULES-1971 of 1971

Published on 10 February 1971

Commenced on 10 February 1971

[This is the version of this document from 10 February 1971.]

[Note: The original publication document is not available and this content could not be verified.]

The Contract Labour (Regulation And Abolition) Central Rules, 1971

Published vide G.S.R. 191, Publication in the Gazette of India, Ext., Pt. II, Section 3(i), dated 10.2.1971.

7.

/408

In exercise of the powers conferred by section 35 of the Contract Labour (Regulation and Abolition) Act, 1970 the Central Government hereby makes the following rules, the same having been previously published as required by the said section, namely:-

Brought into force 10.2.1971.

Chapter I

Rules

1.

Short title and commencement .-(1) These rules may be called The Contract Labour (Regulation and Abolition) Central Rules, 1971.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the subject or context otherwise requires,-

(a)

"Act" means the Contract Labour (Regulation and Abolition) Act, 1970;

(b)

"Appellate Officer" means the Appellate Officer appointed by the Central Government under sub-section (1) of section 15;

(c)

"Board" means the Central Advisory Contract Labour Board constituted under section 3;

(d)

"Chairman" means the Chairman of the Board;

(e)

"Committee" means a Committee constituted under sub-section (1) of section 5;

(f)

"Form" means a form appended to these rules;

(g)

"section" means a section of the Act.

Chapter II

Central Board

3.

The Board shall consist of the following Members,-

(a)

a Chairman to be appointed by the Central Government;

(b)

the Chief Labour Commissioner (Central)- ex officio ;

(c)

[three] persons representing the Central Government, to be appointed by that Government from amongst its officials;

(d)

[two]

[Substituted by G.S.R. 1643, dated 16.10.1971 (w.e.f. 30.10.1971).]

persons representing the Railways, to be appointed by Central Government after consultation with the Railway Board;

(e)

[five]

[Substituted by G.S.R. 598, dated 23.5.1973 (w.e.f. 2.6.1973).]

persons, one representing the employers in coal mines, two representing the employers in other mines and two representing contractors to whom the Act applies, to be appointed by the Central Government after consultation with such organisations, if any, of the employers and the contractors as may be recognised by the Central Government;

(f)

[seven]

[Substituted by G.S.R. 598, dated 23.5.1973 (w.e.f. 2.6.1973).]

persons, [two]

[Substituted by G.S.R. 1643, dated 16.10.1971 (w.e.f. 30.10.1971).]

representing the employees in the Railways, one representing the employees in coal mines, [two]

[Substituted by G.S.R. 598, dated 23.5.1973 (w.e.f. 2.6.1973).]

representing the employees in other mines, and two representing the employees of the contractors to whom the Act applies, to be appointed by the Central Government after consultation with such organisations , if any, of employees representing the respective interest as may be recognised by the Central Government.

4.

Terms of office .-(1) The Chairman of the Board shall hold office as such for a period of three years from the date on which his appointment is first notified in the Official Gazette.

(2)

Each of the members of the Board, referred to in clauses (c) and (d) of rule 3, shall hold office as such during the pleasure of the President.

(3)

Each of the members referred to in clauses (e) and (f) of rule 3 shall hold office as such for a period of three years commencing from the date on which his appointment is first notified in the Official Gazette:

Provided that where the successor of any such member has not been notified in the Official Gazette on or before the expiry of the said period of three years, such member shall, notwithstanding the expiry of the period of his office, continue to hold such office until the appointment of his successor has been notified in the Official Gazette.

(4)

If a member is unable to attend a meeting of the Board, the Central Government or the body which appointed or nominated him may, by notice in writing signed on its behalf and by such member and addressed to the Chairman of the said Board, nominate a substitute in his place to attend the meeting and such a substitute member shall have all the rights of a member in respect of that meeting and any decision taken at the meeting shall be binding on the said body.

5.

[Resignation

-(1) A member of the Board, not being an ex officio member, may resign his office by a letter in writing addressed to the Central Government.

(2)

The office of such a member shall fall vacant from the date on which his resignation is accepted by the Central Government, or on the expiry of thirty days from the date of receipt of the letter of resignation by that Government, whichever is earlier.]

6.

Cessation of membership .-If any member of the Board, not being an ex officio member, fails to attend three consecutive meetings of the Board, without obtaining the leave of the Chairman for such absence, he shall cease to be a member of the Board:

Provided that the Central Government may, if it is satisfied that such member was prevented by sufficient cause from attending three consecutive meetings of the Board, direct that such cessation shall not take place and on such direction being made, such member shall continue to be a member of the Board.

7. Disqualification for membership .-(1) A person shall be disqualified for being re-appointed, and for being a member of the Board,-

(i)

if he is of unsound mind and stands so declared by a competent Court; or

(ii)

if he is an undischarged insolvent; or

(iii)

if he has been or is convicted of an offence which, in the opinion of the Central Government, involves moral turpitude.

(2)

If a question arises as to whether a disqualification has been incurred under sub-rule (1), the Central Government shall decide the same.

8.

Removal from membership .-The Central Government may remove from office any member of the Board, if in its opinion such a member has ceased to represent the interest which he purports to represent on the Board:

Provided that no such member shall be removed unless a reasonable opportunity is given to him of making any representation against the proposed action.

9.

Vacancy .-When a vacancy occurs or is likely to occur in the membership of the Board, the Chairman shall submit a report to the Central Government and on receipt of such report the Central Government shall take steps to fill the

vacancy by making an appointment from amongst the category of persons to which the person vacating membership belonged and the person so appointed shall hold office for the remainder of the term of office of the member in whose place he is appointed.

10.

Staff .-(1) (i) The Central Government may appoint one of its officials as Secretary to the Board and appoint such other staff as it may think necessary to enable the Board to carry out its functions.

(ii)

The salaries and allowances payable to the staff and the other conditions of service of such staff shall be such as may be decided by the Central Government.

(2)

The Secretary-

(i)

shall assist the Chairman in convening meetings of the Board;

(ii)

may attend the meetings but shall not be entitled to vote at such meetings;

(iii)

shall keep a record of the minutes of such meetings; and

(iv)

shall take necessary measures to carry out the decisions taken at the meetings of the Board.

11.

Allowances of members .-(1) The travelling allowance of an official member shall be governed by the rules applicable to him for journey performed by him on official duties and shall be paid by the authority paying his salary.

(2)

The non-official members of the Board shall be paid travelling allowance for attending the meeting of the Board at such rates as are admissible to Grade I Officers of the Central Government and daily allowances shall be calculated at the maximum rate admissible to Grade I Officers of the Central Government in their respective places.

12.

Disposal of business .-Every question which the Board is required to take into consideration shall be considered at a meeting, or, if the Chairman so directs, by sending the necessary papers to every member for opinion, and the question shall be disposed of in accordance with the decision of the majority:

Provided that in the case of equality of votes, the Chairman shall have a second or a casting vote.

Explanation .-"Chairman" for the purposes of this rule shall include the Chairman nominated under rule 13 to preside over a meeting.

13.

Meetings .-(1) The Board shall meet at such places and times as may be specified by the Chairman.

(2)

The Chairman shall preside over every meeting of the Board at which he is present and in his absence nominate a member of the Board to preside over such meeting.

14.

Notice of meetings and list of business .-(1) Ordinarily seven days' notice shall be given to the members of a proposed meeting.

(2)

No business which is not on the list of business for a meeting shall be considered at that meeting without the permission of the Chairman.

15.

Quorum .-No business shall be transacted at any meeting unless atleast five members are present:

Provided that if at any meeting less than five members are present, the Chairman may adjourn the meeting to another date informing members present and giving notice to the other members that he proposes to dispose of the business at the adjourned meeting whether there is prescribed quorum or not, and it shall thereupon be lawful for him to dispose of the business at the adjourned meeting irrespective of the number of members attending.

16.

Committees of the Board .-(1) (i) The Board may constitute such Committees and for such purpose or purposes as it may think fit.

(ii)

While constituting the Committee the Board may nominate one of its members to be the Chairman of the Committee.

(2)

[(i) The Committee shall meet at such times and places as the Chairman of the said Committee may decide.

(ii)

The provisions of rules 12, 13(2), 14 and 15 shall apply to the Committee for transaction of business at its meetings as they apply to the Board, subject to the modification that the quorum specified in rule 15 shall be "one-third" of the members' instead of "five members".]

(3)

The provisions of rule 11 shall apply to the members of the Committee for attending the meetings of the Committee, as they apply to the members of the Board.

Chapter III

Registration And Licensing

17.

Manner of making application for registration of establishments .-(1) The application referred to in sub-section (1) of section 7 shall be made in triplicate in Form I to the registering officer of the area in which the establishment sought to be registered is located.

(2)

The application referred to in sub-rule (1) shall be accompanied by a [demand draft] showing payment of the fees for the registration of the establishment.

(3)

Every application referred to in sub-rule (1) shall be either personally delivered to the registering officer or sent to him by registered post.

(4)

On receipt of the application referred to in sub-rule (1), the registering officer shall, after noting thereon the date of receipt by him of the application, grant an acknowledgment to the applicant.

18.

Grant of certificate of registration .-(1) The certificate of registration granted under sub-section (2) of section 7 shall be in Form II.

(2)

Every certificate of registration granted under sub-section (2) of section 7 shall contain the following particulars, namely:-

(a)

the name and address of the establishment;

(b)

the maximum number of workmen to be employed as contract labour in the establishment;

(c)

the type of business, trade, industry, manufacture or occupation which is carried on in the establishment;

(d)

such other particulars as may be relevant to the employment of contract labour in the establishment.

(3)

The registering officer shall maintain a register in Form III showing the particulars of establishments in relation to which certificates of registration have been issued by him.

(4)

If, in relation to an establishment, there is any change in the particulars specified in the certificate of registration, the principal employer of the establishment shall intimate to the registering officer, within thirty days from the date when such change takes place, the particulars of, and the reasons for, such change.

19.

Circumstances in which application for registration may be rejected .-(1) If any application for registration is not complete in all respects, the registering officer shall require the principal employer to amend the application so as to make it

complete in all respects.

(2)

If the principal employer, on being required by the registering officer to amend his application for registration, omits or fails to do so, the registering officer shall reject the application for registration.

20.

Amendment of certificate of registration .-(1) Where, on receipt of the intimation under sub-rule (4) of rule 18, the registering officer is satisfied that an amount higher than the amount which has been paid by the principal employer as fees for the registration of the establishment is payable, he shall require such principal employer to [pay] a sum which, together with the amount already paid by such principal employer, would be equal to such higher amount of fees payable for the registration of the establishment and to produce the demand draft showing such deposit.

(2)

Where, on receipt of the intimation referred to in sub-rule (4) of rule 18, the registering officer is satisfied that there has occurred a change in the particulars of the establishment, as entered in the register in Form III, he shall amend the said register and record therein the change which has occurred:

Provided that no such amendment shall affect anything done or any action taken or any right, obligation or liability acquired or incurred before such amendment:

Provided further that the registering officer shall not carry out any amendment in the register in Form III unless the appropriate fees have been deposited by the principal employer.

21.

Application for a license .-(1) Every application by a contractor for the grant of a license shall be made in triplicate, in Form IV, to the licensing officer of the area in which the establishment, in relation to which he is the contractor, is located.

(2)

Every application for the grant of a license shall be accompanied by a certificate by the principal employer in Form V to the effect that the applicant has been employed by him as a contractor in relation to his establishment and that he undertakes to be bound by all the provisions of the Act and the rules made thereunder insofar as the provisions are applicable to him as principal employer in respect of the employment of contract labour by the applicant.

(3)

Every such application shall be either personally delivered to the licensing officer or sent to him by registered post.

(4)

On receipt of the application referred to in sub-rule (1), the licensing officer shall, after noting thereon the date of receipt of the application, grant an acknowledgement to the applicant.

(5)

Every application referred to in sub-rule (1) shall also be accompanied by a [demand draft] showing-

(i)

the deposit of the security at the rates specified in rule 24, and

(ii)

the payment of the fees at the rates specified in rule 26.

22.

Matters to be taken into account in granting or refusing a license .-In granting or refusing to grant a license, the licensing officer shall take the following matters into account, namely:-

(a)

whether the applicant-

(i)

is a minor, or

(ii)

is of unsound mind and stands so declared by a competent Court, or

(iii)

is an undischarged insolvent, or

(iv)

has been convicted (at any time during a period of five years immediately preceding the date of application) of an

offence which, in the opinion of the Central Government, involves moral turpitude;

(b)

whether there is an order of the appropriate Government or an award or settlement for the abolition of contract labour in respect of the particular type of work in the establishment for which the applicant is a contractor;

(c)

whether any order has been made in respect of the applicant under sub-section (1) of section 14, and, if so, whether a period of three years has elapsed from the date of that order;

(d)

whether the fees for the application have been deposited at the rates specified in rule 26; and

(e)

whether security has been deposited by the applicant at the rates specified in rule 24.

23.

Refusal to grant license .- [(1) On receipt of the application from the contractor, and as soon as possible thereafter, the licensing officer shall investigate or cause investigation to be made to satisfy himself about the correctness of the facts and particulars furnished in such application and the eligibility of the applicant for a license.]

(2)

(i)

Where the licensing officer is of opinion that the license should not be granted, he shall, after affording reasonable opportunity to the applicant to be heard, make an order rejecting the application.

(ii)

The order shall record the reasons for the refusal and shall be communicated to the applicant.

24.

Security .-(1) Before a license is issued, an amount calculated at the rate of rupees [90] for each of the workman to be employed as contract labour, in respect of which the application for license has been made, shall be deposited by the contractor for due performance of the conditions of the license and compliance with the provisions of the Act or the rules made thereunder:

[Provided that where the contractor is a co-operative society, the amount deposited as security shall be at the rate of rupees 15 for each workman to be employed as a contract labour.]

[Inserted by G.S.R. 200, dated 13.2.1973.]

[(1-A) Where the applicant for the license was holding a license in regard to another work and that license had expired, the licensing officer, if he is of the view that any amount out of the security deposited in respect of that license is to be directed to be refunded to the applicant under rule 31, may, on an application made for that purpose in Form V-A by the applicant, adjust the amount so to be refunded towards the security required to be deposited in respect of the application for the new license and the applicant need deposit, in such a case, only the balance amount, if any, after making such adjustment.]

[Inserted by G.S.R. 948, dated 12.7.1978.]

(2)

[The amount of security, or the balance amount, required to be deposited under sub-rule (1) or, as the case may be, under sub-rule (1-A), shall be paid in the local treasury under the Head of Account "Section T-Deposits & Advances-Part II Deposits not bearing interest-(c) Other Deposit Accounts-Departmental and Judicial Deposits-Civil Deposits-Deposits, under Contract Labour (Regulation & Abolition) Act, 1970 (Central)."

25.

Forms and terms and conditions of license .-(1) Every license granted under sub-section (1) of section 12 shall be in Form VI.

(2)

Every license granted under sub-rule (1) or renewed under rule 29 shall be subject to the following conditions, namely:-

(i)

the license shall be non-transferable;

(ii)

the number of workmen employed as contract labour in the establishment shall not, on any day, exceed the maximum number specified in the license;

(iii)

save as provided in these rules, the fees paid for the grant, or as the case may be, for renewal of the license shall be non-refundable;

(iv)

the rates of wages payable to the workmen by the contractor shall not be less than the rates prescribed under the Minimum Wages Act, 1948 (

11 of 1948

), for such employment where applicable, and where the rates have been fixed by agreement, settlement or award, not less than the rates so fixed;

(v)

(a)

in cases where the workmen employed by the contractor perform the same or similar kind of work as the workmen directly employed by the principal employer of the establishment, the wage rates, holidays, hours of work and other conditions of service of the workmen of the contractor shall be the same as applicable to the workmen directly employed by the principal employer of the establishment on the same or similar kind of work:

Provided that in the case of any disagreement with regard to the type of work the same shall be decided by [the Deputy Chief Labour Commissioner (Central)]

[Inserted by G.S.R. 948, dated 12.7.1978.]

[* * *]

[Certain words omitted by G.S.R. 871(E), dated 26.11.1985.]

;

(b)

[in other cases the wage rates, holidays, hours of work and conditions of service of the workmen of the contractor shall be such as may be specified in this behalf by [the Deputy Chief Labour Commissioner (Central)]

[Inserted by G.S.R. 948, dated 12.7.1978.]

.]

Explanation .-While determining the wage rates, holidays, hours of work and other conditions of service under (b) above, [the Deputy Chief Labour Commissioner (Central)]

[Substituted by G.S.R. 41(E), dated 21.1.1999 (w.e.f. 21.1.1999).]

shall have due regard to the wage rates, holidays, hours of work and other conditions of service obtaining in similar employments;

(vi)

(a)

in every establishment where twenty or more women are ordinarily employed as contract labour, there shall be provided two rooms of reasonable dimensions for the use of their children under the age of six years,

(b)

one of such rooms shall be used as a play-room for the children and the other as bedroom for the children,

(c)

the contractor shall supply adequate number of toys and games in the play-room and sufficient number of cots and beddings in the sleeping-room,

(d)

the standard of construction and maintenance of the creches shall be such as may be specified in this behalf by the Chief Labour Commissioner (Central);

(vii)

the licensee shall notify any change in the number of workmen or the conditions of work to the licensing officer;

(viii)

[the licensee shall, within fifteen days of the commencement and completion of each contract work submit a return to the Inspector, appointed under section 28 of the Act, intimating the actual date of the commencement or, as the case may be, completion of such contract work in Form VI-A;]

[Inserted by G.S.R. 199, dated 25.1.1977 (w.e.f. 12.2.1977).]

(ix)

[a copy of the license shall be displayed prominently at the premises where the contract work is being carried on;]

[Inserted by G.S.R. 657, dated 11.8.1987.]

(x)

□

[Renumbered as Clause (x) by G.S.R. 657, dated 11.8.1987.]

no female contract labour shall be employed by any contractor before 6.00 a.m. or after 7.00 p.m.:

Provided that this clause shall not apply to the employment of women in pithead baths, creches and canteens and so to midwives and nurses in hospitals and dispensaries.

26.

[Fees

-(1) The fees to be paid for the grant of a certificate of registration under section 7 shall be as specified below:-

If the number of workmen proposed to be employed on contract on any day:-

(a)

is 20

Rs. 60

(b)

exceeds 20 does not exceed 50

Rs. 150

(c)

exceeds 50 but does not exceed 100

Rs. 300

(d)

exceeds 100 but does not exceed 200

Rs. 600

(e)

exceeds 200 but does not exceed 400

Rs. 1200

(f)

exceeds 400

Rs. 1500

(2)

The fees to be paid for the grant of a license under section 12 shall be as specified below:

If the number of workmen employed by the contractor on any day-

(a)

is 20

Rs. 15

(b)

exceeds 20 does not exceed 50

Rs. 37,50

(c)

exceeds 50 but does not exceed 100

Rs. 75

(d)

exceeds 100 but does not exceed 200

Rs. 150

(e)

exceeds 200 but does not exceed 400

Rs. 300

(f)

exceeds 400

Rs. 375

]

]

27.

Validity of the license .-Every license granted under rule 25 or renewed under rule 29 shall remain in force for twelve months from the date it is granted or renewed.

28.

Amendment of the license .-(1) A license issued under rule 25 or renewed under rule 29 may, for good and sufficient reasons, be amended by the Licensing Officer.

(2)

The contractor who desires to have the license amended shall submit to the licensing officer an application stating the nature of the amendment and reasons therefor.

(3)

(i)

If the licensing officer allows the application, he shall require the applicant to furnish a [demand draft] for the amount, if any, by which the fees that would have been payable if the license had been originally issued in the amended form exceeds the fees originally paid for the license.

(ii)

On the applicant furnishing the requisite [demand draft]

[Substituted by G.S.R. 657, dated 11.8.1987.]

, the license shall be amended according to the orders of the licensing officer.

(4)

Where the application for amendment is refused, the licensing officer shall record the reasons for such refusal and communicate the same to the applicant.

29.

Renewal of license .-(1) Every contractor shall apply to the licensing officer for renewal of the license.

(2)

Every such application shall be in Form VII in triplicate and shall be made not less than thirty days before the date on which the license expires, and if the application is so made, the license shall be deemed to have been renewed until such date when the renewed license is issued.

(3)

The fees chargeable for renewal of the license shall be the same as for the grant thereof:

Provided that if the application for renewal is not received within the time specified in sub-rule (2), a fee of 25 per cent. in excess of the fee ordinarily payable for the license shall be payable for such renewal:

Provided further that in case where the licensing officer is satisfied that the delay in submission of the application is due to unavoidable circumstances beyond the control of the contractor, he may reduce or remit as he thinks fit the payment of such excess fee.

30.

Issue of duplicate certificate of registration or license .-Where a certificate of registration or a license granted or renewed under the preceding rules has been lost, defaced or accidentally destroyed, a duplicate may be granted on payment of fees of rupees five.

31.

Refund of security .-(1) (i) On expiry of the period of license the contractor may, if he does not intend to have his license renewed, make an application to the licensing officer for the refund of the security deposited by him under rule 24.

(ii)

If the licensing officer is satisfied that there is no breach of the conditions of license or there is no order under section 14 for the forfeiture of security or any portion thereof, he shall direct the refund of the security to the applicant.

(2)

If there is any order directing the forfeiture of any portion of the security, the amount to be forfeited shall be deducted from the security deposit, and balance, if any, refunded to the applicant.

(3)

Any application for refund shall, as far as possible, be disposed of within 60 days of the receipt of the application.

32.

Grant of temporary certificate of registration and license .-(1) Where conditions arise in an establishment requiring the employment of contract labour immediately and such employment is estimated to last for not more than fifteen days, the principal employer of the establishment or the contractor, as the case may be, may apply for a temporary certificate of registration or license to the registering Officer or the Licensing Officer, as the case may be, having jurisdiction over the area in which the establishment is situated.

(2)

The application for such temporary certificate of registration or license shall be made in triplicate in Forms VIII and X respectively and shall be accompanied by a [demand draft drawn in favour of the Pay and Accounts Officer, Office of the Chief Labour Commissioner (Central), New Delhi] showing the payment of appropriate fees and in the case of license the appropriate amount of security also.

(3)

On receipt of the application, complete in all respects, and on being satisfied either on affidavit by the applicant or otherwise that the work in respect of which the application has been made would be finished in a period of fifteen days and was of a nature which could not but be carried out immediately, the registering officer or the licensing officer, as the case may be, shall forthwith grant a certificate of registration in Form IX or a license in Form XI, as the case may be, for a period of not more than fifteen days.

(4)

Where a certificate of registration or license is not granted, the reasons therefor shall be recorded by the registering officer or the licensing officer, as the case may be.

(5)

On the expiry of the validity of the registration certificate the establishment shall cease to employ in the establishment contract labour in respect of which the certificate was given.

(6)

The fees to be paid for the grant of the certificate of registration under sub-rule (3) shall be as specified below:

If the number of workmen proposed to be employed on contract on any day-

(a)

exceeds 20 but does not exceed 50

30. [00]

[Substituted by G.S.R. 1215(E), dated 28.12.1988.]

(b)

exceeds 50 but does not exceed 200

60. [00]

[Substituted by G.S.R. 1215(E), dated 28.12.1988.]

(c)

exceeds 200

90. [00]

[Substituted by G.S.R. 1215(E), dated 28.12.1988.]

(7)

The fees to be paid for the grant of a license under sub-rule (3) shall be specified below:

If the number of workmen to be employed by the contractor on any day-

(a)

exceeds 20 but does not exceed 50

15. [00]

[Substituted by G.S.R. 1215(E), dated 28.12.1988.]

(b)

exceeds 50 but does not exceed 200

60. [00]

[Substituted by G.S.R. 1215(E), dated 28.12.1988.]

(c)

exceeds 200

90. [00]

[Substituted by G.S.R. 1215(E), dated 28.12.1988.]

(8)

The provision of rule 23 and rule 24 shall apply to the refusal to grant license or to grant license under sub-rule (4) and sub-rule (3) respectively"> (8) The provision of rule 23 and rule 24 shall apply to the refusal to grant license or to grant license under sub-rule (4) and sub-rule (3) respectively.

Chapter IV

Appeals And Procedure

33.

(1)

(i)

Every appeal under sub-section (1) of section 15 shall be preferred in the form of a memorandum signed by the appellant or his authorised agent and presented to the Appellate Officer in person or sent to him by registered post.

(ii)

The memorandum shall be accompanied by a certified copy of the order appealed from and a [demand draft] for rupees 10.

(2)

The memorandum shall set forth concisely and under distinct heads the grounds of appeal to the order appealed from.

34.

(1)

Where the memorandum of appeal does not comply with the provisions of sub-rule (2) of rule 33, it may be rejected or returned to the appellant for the purpose of being amended within a time to be fixed by the Appellate Officer.

(2)

Where the Appellate Officer rejects the memorandum under sub-rule (1), he shall record the reason for such rejection and communicate the order to the appellant.

(3)

Where the memorandum of appeal is in order, the Appellate Officer shall admit the appeal, endorse thereon the date of presentation and shall register the appeal in a book to be kept for the purpose called the Register of Appeals.

(4)

(i)

When the appeal has been admitted, the Appellate Officer shall send the notice of the appeal to the registering officer or the licensing officer, as the case may be, from whose order the appeal has been preferred and the Registering Officer or the Licensing Officer shall send the record of the case to the Appellate Officer.

(ii)

On receipt of the record, the Appellate Officer shall send a notice to the appellant to appear before him at such date and time as may be specified in the notice for the hearing of the appeal.

35.

Failure to appear on date of hearing .- If on the date fixed for hearing, the appellant does not appear, the Appellate Officer may dismiss the appeal for default of appearance of the appellant.

36.

Restoration of appeal .- (i) Where an appeal has been dismissed under rule 35 the appellant may apply to the Appellate Officer for the re-admission of the appeal, and where it is proved that he was prevented by any sufficient cause from appearing when the appeal was called on for hearing, the Appellate Officer shall restore the appeal on its original number.

(ii)

Such an application shall, unless the Appellate Officer extends the time for sufficient reason, be made within 30 days of the date of dismissal.

37.

Hearing of appeal .-(1) If the appellant is present when the appeal is called on for the hearing, the Appellate Officer shall proceed to hear the appellant or his authorised agent and any other person summoned by him for this purpose, and pronounce judgment on the appeal, either confirming, reversing or varying the order appealed from.

(2)

The judgment of the Appellate Officer shall state the points for determination, the decisions thereon and reasons for the decisions.

(3)

The order shall be communicated to the appellant and copy thereof shall be sent to the Registering Officer or the Licensing Officer from whose order the appeal has been preferred.

38.

[Payment of fees

.- (1) All amounts of money payable on account of security deposit, registration fees, license fee, appeal, supply of duplicate copies of registration certificates and in terms of any other provisions of the Act and rules shall be paid through a crossed demand draft drawn in favour of the officers as shown in Annexure "A" and made payable at branch of the Union Bank of India at the headquarters of the officers specified in column (3) of the said Annexure. All such demand drafts shall be accompanied by a challan in Form No. TR-6 (in triplicate) indicating the details of payments, etc.

(2)

The licensing officer, the registering officer or the Appellate Authority, as the case may be, on receipt of the demand draft from the party shall arrange to deposit the amount in the appropriate account in the bank with which he, in his capacity as Regional Labour Commissioner/Assistant Labour Commissioner (Central) as drawing and disbursing officer is in account. The Assistant Labour Commissioner (Central), Delhi shall deposit the demand draft in the Union Bank of India, Extension Centre, Shram Shakti Bhawan, Rafi Marg, New Delhi in the Account of "Pay and Accounts Officer", Chief Labour Commissioner, New Delhi.

(3)

The payments received by the officers specified in the said Annexure by way of demand drafts shall be deposited in the relevant heads of accounts as shown below:-

Registration fees .-"087-Labour and Employment-Fees under Contract Labour (Regulation and Abolition) Central Rules, 1971 (adjustable in the books of the Pay and Accounts Officer, Chief Labour Commissioner), Ministry of Labour, New Delhi".

Licensing fees .-"087-Labour Employment-Fees under the Contract Labour (Regulation and Abolition) Central Rules, 1971 (adjustable in the books of the Pay and Accounts Officer, Chief Labour Commissioner), Ministry of Labour, New Delhi".

Security deposits .-"Deposits and Advance-Deposits not bearing interest 843-Civil Deposits under Contract Labour (Regulation and Abolition) Act, 1970 (adjustable in the books of the Pay and Accounts Officer, Chief Labour Commissioner) Ministry of Labour, New Delhi".

Duplicate copy of the registration certificates .-"087-Labour and Employment Fee under Contract Labour Appeals (Regulation and Abolition) Central Rules, 1971".]

39.

Copies .-Copy of the order of the Registering Officer, Licensing Officer or the Appellate Officer may be obtained on payment of fees of rupees two for each order on application specifying the date and other particulars of the order, made to the officer concerned.

Chapter V

Welfare And Health Of Contract Labour

40.

(1)

The facilities required to be provided under sections 18 and 19 of the Act, namely, sufficient supply of wholesome drinking water, a sufficient number of latrines and urinals, washing facilities and first-aid facilities, shall be provided by the contractor in the case of the existing establishments within seven days of the commencement of these rules and in the case of new establishments within seven days of the commencement of the employment of contract labour therein.

(2)

If any of the facilities mentioned in sub-rule (1) is not provided by the contractor within the period prescribed the same shall be provided by the principal employer within seven days of the expiry of the period laid down in the said sub-rule.

41.

Rest-rooms .-(1) In every place wherein contract labour is required to halt at night in connection with the working of the

establishment to which the Act applies and in which employment of contract labour is likely to continue for three months or more the contractor shall provide and maintain rest-rooms or other suitable alternative accommodation within fifteen days of the coming into force of the rules in the case of existing establishments, and within fifteen days of the commencement of the employment of contract labour in new establishments.

(2)

If the amenity referred to in sub-rule (1) is not provided by the contractor within the period prescribed, the principal employer shall provide the same within a period of fifteen days of the expiry of the period laid down in the said sub-rule.

(3)

Separate rooms shall be provided for women employees.

(4)

Effective and suitable provision shall be made in every room for securing and maintaining adequate ventilation by the circulation of fresh air and there shall also be provided and maintained sufficient and suitable natural or artificial lighting.

(5)

The rest-room or rooms or other suitable alternative accommodation shall be of such dimensions so as to provide at least a floor area of 1.1. sq. metre for each person making use of the rest-room.

(6)

The rest-room or rooms or other suitable alternative accommodation shall be so constructed as to afford adequate protection against heat, wind, rain and shall have smooth, hard and impervious floor surface.

(7)

The rest-room or other suitable alternative accommodation shall be at a convenient distance from the establishment and shall have adequate supply of wholesome drinking water.

42.

Canteens .-(1) In every establishment to which the Act applies and wherein work regarding the employment of contract labour is likely to continue for six months and wherein contract labour numbering one hundred or more are ordinarily employed an adequate canteen shall be provided by the contractor for the use of such contract labour within sixty days of the date of coming into force of the rules in the case of the existing establishments and within 60 days of the commencement of the employment of contract labour in the case of new establishments.

(2)

If the contractor fails to provide the canteen within the time laid down the same shall be provided by the principal employer within sixty days of the expiry of the time allowed to the contractor.

(3)

The canteen shall be maintained by the contractor or principal employer, as the case may be, in an efficient manner.

43.

(1)

The canteen shall consist of at least a dining-hall, kitchen, store-room, pantry and washing places separately for workers and for utensils.

(2)

(i)

The canteen shall be sufficiently lighted at all times when any person has access to it.

(ii)

The floor shall be made of smooth and impervious material and inside walls shall be lime-washed or colour-washed at least once in each year:

Provided that the inside walls of the kitchen shall be lime-washed every four months.

(3)

(i)

The precincts of the canteen shall be maintained in a clean and sanitary condition.

(ii)

Waste water shall be carried away in suitable covered drains and shall not be allowed to accumulate so as to cause a nuisance.

(iii)

Suitable arrangements shall be made for the collection and disposal of garbage.

44.

Dining-hall .-(1) The dining-hall shall accommodate at a time at least 30 per cent. of the contract labour working at a time.

(2)

The floor area of the dining-hall, excluding the area occupied by the service counter and any furniture except tables and chairs shall be not less than one square metre per diner to be accommodated as prescribed in sub-rule (1).

(3)

(i)

A portion of the dining hall and service counter shall be partitioned off and reserved for women workers, in proportion to their number.

(ii)

Washing places for women shall be separate and screened to secure privacy.

(4)

Sufficient tables, stools, chairs or benches shall be available for the number of diners to be accommodated as prescribed in sub-rule (1).

45.

Furniture and utensils .-(1)(i) There shall be provided and maintained sufficient utensils, crockery, cutlery, furniture and any other equipment necessary for the efficient running of the canteen.

(ii)

The furniture, utensils and other equipment shall be maintained in a clean and hygienic condition.

(2)

(i)

Suitable clean clothes for the employees serving in the canteen shall also be provided and maintained.

(ii)

A service counter, if provided, shall have top of smooth and impervious material.

(iii)

Suitable facilities including an adequate supply of hot water shall be provided for the cleaning of utensils and equipment.

46.

The foodstuffs and other items to be served in the canteen shall be in conformity with the normal habits of the contract labour.

47.

Charges of foodstuff.-The charges for foodstuffs, beverages and any other items served in the canteen shall be based on "no profit, no loss" and shall be conspicuously displayed in the canteen.

48.

In arriving at the prices of foodstuffs and other articles served in the canteen the following items shall not be taken into consideration as expenditure, namely:-

(a)

the rent for the land and building;

(b)

the depreciation and maintenance charges for the building and equipment provided for in the canteen;

(c)

the cost of purchase, repairs and replacement of equipments including furniture, crockery, cutlery and utensils;

(d)

the water charges and other charges incurred for lighting and ventilation;

(e)

the interest on the amounts spent on the provisions and maintenance of furniture and equipment provided for in the canteen.

49.

Books of accounts .-The books of accounts and registers and other documents used in connection with the running of the canteen shall be produced on demand to an Inspector.

50.

Audit .-The accounts pertaining to the canteen shall be audited once every 12 months by registered accountants and auditors:

Provided that the Chief Labour Commissioner (Central) may approve of any other person to audit the accounts, if he is satisfied that it is not feasible to appoint a registered accountant and auditor in view of the site or the location of the canteen.

51.

Latrines and urinals .-Latrines shall be provided in every establishment coming within the scope of the Act on the following scale, namely:-

(a)

where females are employed, there shall be at least one latrine for every 25 females;

(b)

where males are employed, there shall be at least one latrine for every 25 males:

Provided that where the number of males or females exceeds 100, it shall be sufficient if there is one latrine for every 25 males or females, as the case may be, upto the first 100, and one for every 50 thereafter.

52.

Every latrine shall be under cover and so partitioned off as to secure privacy, and shall have a proper door and fastenings.

53.

(1)

Where workers of both sexes are employed there shall be displayed outside each block of latrine and urinal a notice in the language understood by the majority of the workers "For Men only" or "For Women only", as the case may be.

(2)

The notice shall also bear the figure of a man or of a woman, as the case may be.

54.

There shall be at least one urinal for male workers upto 50 and one for female workers upto 50 employed at a time:

Provided that where the number of male or female workmen, as the case may be, exceeds 500 it shall be sufficient if there is one urinal for every 50 males or females upto the first 500 and one for every 100 or part thereof thereafter.

55.

(1)

The latrines and urinals shall be conveniently situated and accessible to workers at all times at the establishment.

(2)

(i)

The latrines and urinals shall be adequately lighted and shall be maintained in a clean and sanitary condition at all times.

(ii)

Latrines and urinals other than those connected with a flush sewage system shall comply with the requirements of the public health authorities.

56.

Water shall be provided by the means of tap or otherwise so as to be conveniently accessible in or near the latrine and urinals.

57.

Washing facilities .-(1) In every establishment coming within the scope of the Act adequate and suitable facilities for washing shall be provided and maintained for the use of contract labour employed therein.

(2)

Separate and adequate screening facilities shall be provided for the use of male and female workers.

(3)

Such facilities shall be conveniently accessible and shall be kept in clean and hygienic condition.

58.

First-aid facilities .-In every establishment coming within the scope of the Act there shall be provided and maintained so as to be readily accessible during all working hours first-aid boxes at the rate of not less than one box for 150 contract labour or part thereof ordinarily employed.

59.

(1)

The first-aid box shall be distinctively marked with a red cross on a white ground and shall contain the following equipment, namely:-

(a)

For establishments in which the number of contract labour employed does not exceed fifty-

(Each first-aid box shall contain the following equipment-

(i)

6 small sterilized dressings.

(ii)

3 medium-size sterilized dressings.

(iii)

3 large-size sterilized dressings.

(iv)

3 large sterilized burn dressings.

(v)

1 (30 ml.) bottle containing a two per cent. alcoholic solution of iodine.

(vi)

1 (30 ml.) bottle containing salvolatile having the dose and mode of administration indicated on the label.

(vii)

1 snake-bite lancet.

(viii)

1 (30 gms.) bottle of potassium permanganate crystals.

(ix)

1 pair scissors.

(x)

1 copy of the first-aid leaflet issued by the Director-General, Factory Advice Service and Labour Institutes, Government of India.

(xi)

A bottle containing 100 tablets (each of 5 grains) of aspirin.

(xii)

Ointment for burns.

(xiii)

A bottle of suitable surgical anti-septic solution.

(b)

For establishments in which the number of contract labour exceeds fifty-

Each first-aid box shall contain the following equipment:-

(i)

12 small sterilized dressings.

(ii)

6 medium-size sterilized dressings.

(iii)

6 large-size sterilized dressings.

(iv)

6 large-size sterilized burn dressings.

(v)

6 (15 gms.) packets sterilized cotton wool.

(vi)

1 (60 ml.) bottle containing a two per cent. alcoholic solution of iodine.

(vii)

1 (60 ml.) bottle containing salvolatile having the dose and mode of administration indicated on the label.

(viii)

1 roll of adhesive plaster.

(ix)

A snake-bite lancet.

(x)

1(30 gms.) bottle of potassium permanganate crystals.

(xi)

1 pair scissors.

(xii)

1 copy of the first-aid leaflet issued by the Director-General, Factory Advice Service and Labour Institutes, Government of India.

(xiii)

A bottle containing 100 tablets (each of 5 grains) of aspirin.

(xiv)

Ointment for burns.

(xv)

A bottle of a suitable surgical anti-septic solution.

(2)

Adequate arrangement shall be made for immediate recoupment of the equipment when necessary.

60.

Nothing except the prescribed contents shall be kept in the first-aid box.

61.

The first-aid box shall be kept in charge of a responsible person who shall always be readily available during the working hours of the establishment.

62.

A person incharge of the first-aid box shall be a person trained in first-aid treatment, in establishments where the number of contract labour employed is 150 or more.

Chapter VI

Wages

63.

The contractor shall fix wage-periods in respect of which wages shall be payable.

64.

No wage-period shall exceed one month.

65.

The wages of every person employed as contract labour in an establishment or by a contractor where less than one thousand such persons are employed shall be paid before the expiry of the seventh day and in other cases before the expiry of tenth day after the last day of the wage-period in respect of which the wages are payable.

66.

Where the employment of any worker is terminated by or on behalf of the contractor the wages earned by him shall be paid before the expiry of the second working day from the day on which his employment is terminated.

67.

All payments of wages shall be made on a working day at the work premises and during the working time and on a date notified in advance and in case the work is completed before the expiry of the wage-period, final payment shall be made within 48 hours of the last working day.

68.

Wages due to every worker shall be paid to him direct or to other person authorised by him in this behalf.

69.

[

All wages shall be paid in current coin or currency notes or by cheque or by crediting the wages in the bank account of the workman:

Provided that the appropriate Government may, by notification in the Official Gazette, specify the establishment or class of establishments, the employer of which shall pay to every workman employed in such establishment or class of

establishments, the wages only by cheque or by crediting the wages in his bank account.]

70.

Wages shall be paid without any deductions of any kind except those specified by the Central Government by general or special order in this behalf or permissible under the Payment of Wages Act, 1936 (4 of 1936).

71.

A notice showing the wage-period and the place and time of disbursement of wages shall be displayed at the place of work and a copy sent by the contractor to the principal employer under acknowledgement.

72.

The principal employer shall ensure the presence of his authorised representative at the place and time of disbursement of wages by the contractor to workmen and it shall be the duty of the contractor to ensure the disbursement of wages in the presence of such authorised representative.

73.

The authorised representative of the principal employer shall record under his signature a certificate at the end of the entries in the Register of Wages or the [Register of Wages-cum-Muster Roll] as the case may be, in the following form:

"Certified that the amount shown in column No.....has been paid to the workman concerned in my presence on.....at....."

Chapter VII

Registers And Records And Collection Of Statistics

74.

Register of contractors .-Every principal employer shall maintain in respect of each registered establishment a register of contractors in Form XII.

75.

Register of persons employed .-Every contractor shall maintain in respect of each registered establishment where he employs contract labour a register in Form XIII.

76.

Employment card .-(i) Every contractor shall issue an employment card in Form XIV to each worker within three days of the employment of the worker.

(ii)

The card shall be maintained upto date and any change in the particulars shall be entered therein.

77.

Service certificate .-On termination of employment for any reason whatsoever the contractor shall issue to the workman whose services have been terminated a Service Certificate in Form XV.

78.

Muster Roll, Wages Registers, Deduction Register and Overtime Register .- [(1) (a) Every contractor shall in respect of each work on which he engages contract labour,-

(i)
maintain a Muster Roll and a Register of Wages in Form XVI and Form XVII respectively:

Provided that a combined Register of Wage-cum-Muster Roll in Form XVII shall be maintained by the contractor where the wage-period is a fortnight or less;

(ii)

maintain a Register of Deductions for damage or loss, Register of Fines and Register of Advances in Form XX, Form XXI and Form XXII respectively;

(iii)

maintain a Register of Overtime in Form XXIII recording therein the number of hours of, and wages paid for, overtime works, if any.

(b)

Every contractor shall, where the wage-period is one week or more, issue wage slips in Form XIX, to the workmen at least a day prior to the disbursement of wages.

(c)

Every contractor shall obtain the signature or thumb-impression of the worker concerned against the entries relating to him on the Register of Wages or Muster Roll-cum-Wages Register, as the case may be, and the entries shall be

authenticated by the initials of the contractor or his authorised representative and shall also be duly certified by the authorised representative of the principal employer in the manner provided in rule 73.

(d)

In respect of establishments which are governed by the Payment of Wages Act, 1936 (4 of 1936) and the rules made thereunder, or Minimum Wages Act, 1948 (

11 of 1948

) or the rules made thereunder, the following registers and records required to be maintained by a contractor as employer under those Acts and the rules made thereunder shall be deemed to be registers and records to be maintained by the contractor under these rules, namely:-

(a)

Muster Roll;

(b)

Register of Wages;

(c)

Register of Deductions;

(d)

Register of Overtime;

(e)

Register of Fines;

(f)

Register of Advances;

(g)

Wage Slip.]

(3)

Notwithstanding anything contained in these rules, where a combined or alternative form is sought to be used by the contractor to avoid duplication of work for compliance with the provisions of any other Act or the rules framed thereunder or any other laws or regulations or in cases where mechanised payrolls are introduced for better administration, alternative suitable form or forms in lieu of any of the forms prescribed under these rules, may be used with the previous approval of the [Regional Labour Commissioner (Central)]

[Substituted by G.S.R. 48, dated 31.12.1987.]

.

79.

Every contractor shall display an abstract of the Act and rules in English and Hindi and in the language spoken by the majority of workers in such form as may be approved by the Chief Labour Commissioner (Central).

80.

(1)

All registers and other records required to be maintained under the Act and rules, shall be maintained complete and upto date, and, unless otherwise provided for, shall be kept at an office or the nearest convenient building within the precincts of the workplace or at a place within a radius of three kilometres.

(2)

[Such registers shall be maintained legibly in English and Hindi or in the language understood by the majority of the persons employed in the establishment.]

(3)

All the registers and other records shall be preserved in original for a period of three calendar years from the date of last entry therein.

(4)

All the registers, records and notices maintained under the Act, or rules shall be produced on demand before the Inspector or any other authority under the Act or any person authorised in that behalf by the Central Government.

(5)

Where no deduction or fine has been imposed or no overtime has been worked during any wage-period, a "nil" entry shall be made across the body of the register at the end of the wage-period indicating also in precise terms the

wage-period to which the "nil" entry relates, in the respective registers maintained in Forms XX, XXI and XXII respectively.

81.

(1)

(i)

Notices showing the rates of wages, hours of work, wage-periods, dates of payment of wages, names and addresses of the Inspectors having jurisdiction, and date of payment of unpaid wages, shall be displayed in English and in Hindi and in the local language understood by the majority of the workers in conspicuous places at the establishment and the work-site by the principal employer or the contractor, as the case may be.

(ii)

The notices shall be correctly maintained in a clean and legible condition.

(2)

A copy of the notice shall be sent to the Inspector and whenever any changes occur the same shall be communicated to him forthwith.

(3)

[Every principal employer shall, within fifteen days of the commencement or completion of each contract work under each contractor, submit a return to the Inspector, appointed under section 28 of the Act, intimating the actual dates of the commencement or, as the case may be, completion of such contract work, in Form VI-B.]

82.

Returns .- (1) Every contractor shall send half yearly return in Form XXIV (in duplicate) so as to reach the licensing officer concerned not later than 30 days from the close of the half year.

(2)

Every principal employer of a registered establishment shall send annually a return in Form XXV (in duplicate) so as to reach the Registering Officer concerned not later than the 15th February following the end of the year to which it relates.

(3)

[The returns to be submitted under this rule by contractor or principal employer shall be correct, complete and up to date in all respects.]

83.

(1)

The Board, Committee, Chief Labour Commissioner (Central) or the Inspector or any other authority under the Act shall have the powers to call for any information or statistics in relation to contract labour from any contractor or principal employer at any time by an order in writing.

(2)

Any person called upon to furnish the information under sub-rule (1) shall be legally bound to do so.

FORM I

[See rule 17(1)]

Application For Registration Of establishments Employing Contract Labour

1. Name and location of the establishment

2. Postal address of the establishment.

3. Full name and address of the Principal Employer (furnish father's name in the case of individuals).

4. Full name and address of the Manager or person responsible for the supervision and control of the establishment.

5. Nature of work carried on in the establishment.

6. Particulars of contractors and contract labour:

(a)

Names and Addresses of Contractors.

(b)

Nature of work in which contract labour is employed or is to be employed.

(c)

Maximum number of Contract Labour to be employed on any day through each contractor.

(cc)

[Estimated date of commencement of each contract work under each contractor.]

(d)

Estimated date of termination of employment of Contract Labour under each contractor.

[7. Particular of demand draft enclosed (Name of the Union Bank, amount, demand draft No. and date)]

[Inserted by G.S.R. 657, dated 11th August, 1987.]

I hereby declare that the particulars given above are true to the best of my knowledge and belief.

Principal employer

Seal and Stamp

Office of the Registering Officer

Date of receipt of application

FORM II

[See rule 18(1)]

Certificate Of Registration

Date.....

Government of India

Office of the Registering Officer

A Certificate of Registration containing the following particulars is hereby granted under sub-section (2) of section 7 of the Contract Labour (Regulation and Abolition) Act, 1970, and the rules made thereunder, to

1. Nature of work carried on in the establishment.
2. Names and Addresses of Contractors.
3. Nature of work in which contract labour is employed or is to be employed.
4. Maximum number of contract labour to be employed on any day through each contractor.
5. Other particulars relevant to the employment of contract labour.

Signature of Registering

Officer with Seal.

FORM III

[See rule 18(3)]

Register Of Establishments

REGISTER OF ESTABLISHMENTS

PARTICULARS OF CONTRACTOR AND CONTRACT LABOUR

Sl. No.

Registration No. and date

Name and address of the establishment registered

Name of the principal employer and his address

Type of business, trade, industry, manufacture or occupation, which is carried on in the establishment

Total No. of workmen directly employed

Name and address of contractor

Nature of work in which contract labour is employed or is to be employed

Maximum No. of contract labour to be employed on any day

Probable duration of employment of contract labour

Remarks

1

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FORM IV

[See rule 21(1)]

Application For Licence

1. Name and address of the contractor (including his father's name in case of individuals).

2. Date of birth and age (in case of individuals).

3. Particulars of Establishment where contract labour is to be employed:-

(a)

Name and address of the establishment;

(b)

Type of business, trade, industry, manufacture or occupation, which is carried on in the establishment;

(c)

Number and date of Certificate of Registration of the Establishment under the Act;

(d)

Name and address of the Principal Employer.

4. Particulars of contract labour:-

(a)

Nature of work in which contract labour is employed or is to be employed in the establishment:

(b)

Duration of the proposed contract work (give particulars of proposed date of commencing and ending):

(c)

Name and address of the Agent or Manager of Contractor at the worksite:

(d)

Maximum No. of contract labour proposed to be employed in the establishment on any date:

5. Whether the contractor was convicted of any offence within the preceding five years. If so, give details.

6. Whether there was any order against the contractor revoking or suspending licence or forfeiting security deposits in respect of an earlier contract. If so, the date of such order.

7. Whether the contractor has worked in any other establishment within the past five years. If so, give details of the Principal Employer, Establishment and nature of work.

8. Whether a certificate by the Principal Employer in Form V is enclosed.

9. [Amount of licence fee, name of the Union Bank, demand draft No. and date.]

[Substituted by G.S.R. 657, dated 11.8.1987]

10. Amount of security deposit, name of the Union Bank, demand draft No. and date.

Note.-The application shall be accompanied by demand draft and the challan for the appropriate amount and a certificate in Form V from the principal employer

Dated of the receipt of the application with 'demand draft' and the challan for fees/security deposit].

Declaration.-I hereby declare that the details given above are correct to the best of my knowledge and belief.

Place.....

Date.....

.....
Signature of the applicant (Contractor)

Note.-The application should be accompanied by a Treasury Receipt for the appropriate amount and a certificate in Form V from the Principal Employer. (To be filled in the office of the Licensing Officer)

Date of receipt of the application with challan for fees/Security Deposit. Signature of the Licensing Officer

FORM V

[See rule 21(2)]

Form Of Certificate By Principal Employer

Certified that I have engaged the applicant (name of the contractor) as a contractor in my establishment. I undertake to be bound by all the provisions of the Contract Labour (Regulation and Abolition) Act, 1970 and the Contract Labour (Regulation and Abolition) Central Rules, 1971, in so far as the provisions are applicable to me in respect of the employment of contract labour by the applicant in my establishment.

Signature of Principal Employer

Name and address of Establishment

Place.....

Date.....

[Inserted by G.S.R. 948, dated 12th July, 1978.]

[FORM V-A]

[See rule 24 (1-A)]

Application For adjustment Of security deposit

Name and address of the contractor

No. and date of licence

Date of expiry of previous licence

Whether the license of the contractor

was suspended or revoked

No. and date of the demand draft of the security deposit in respect of the previous license

Amount of previous security deposit

No. and date of the demand draft of the balance of security deposit, if any, required on the fresh contract

[Substituted by G.S.R. 657, dated 11-8-1987.]

No. and date of certificate of registration of the establishment in relation to which the new license is applied for

Name and address of the principal employer

Particulars of fresh contract

Remarks

1

2

3

4

5

6

7

8

9

10

11

Place

Date

Signature of applicant

FORM VI

[See rule 25(1)]

Government of India

Office Of Licensing Officer

Licence No..... Dated..... Fee paid Rs.....

Licence

1. Licence is hereby granted to under section 12(1) of the Contract Labour (Regulation and Abolition) Act, 1970, subject to the conditions specified in Annexure.

[2. This licence is for doing the work of (nature of work to be indicated) in the establishment of(name of principal employer to be indicated) of..... (place of work to be indicated).

3. The licence shall remain in force till.....(date to be indicated)]

[Substituted by G.S.R. 948, dated 12-7-1978]

.

Date.....

Signature and Seal of the Licensing Officer

Renewal

[Rule 29]

Date of renewal

Fee paid for renewal

Date of expiry

1.

2.

3.

Date.....

Signature and Seal of the Licensing Officer

Annexure

The licence is subject to the following conditions:

1. The licence shall be non-transferable.

2. The number of workmen employed as contract labour in the establishment shall not, on any day, exceed

3. Except as provided in the rules the fees paid for the grant, or as the case may be, for renewal of the licence shall be non-refundable.

4. The rates of wages payable to the workmen by the contractor shall not be less than the rates prescribed for the Schedule of employment under the Minimum Wages Act, 1948, where applicable, and where the rates have been fixed by agreement, settlement or award, not less than the rates fixed.

5. In case where the workmen employed by the contractor per Form the same or similar kind of work as the workmen directly employed by the The Contract Labour (Regulation and Abolition) Central Rules, 1971 principal employer of the establishment, the wage rates, holidays, hours of work and other conditions of service of the workmen of the contractor shall be the same as applicable to the workmen directly employed by the principal employer of the establishment on the same or similar kind of work: Provided that in the case of any disagreement with regard to the type of work the same shall be decided by the [Deputy Chief Labour Commissioner (Central)]

[Substituted by G.S.R. 574(E), dated 30-6-2000 (w.e.f. 30-6-2000)]

whose decision shall be final.

6. In other cases the wage rates, holidays, hours of work and conditions of service of the workmen of the contractor shall be such as may be specified in this behalf by the [Deputy Chief Labour Commissioner (Central)]

[Substituted by G.S.R. 574(E), dated 30-6-2000 (w.e.f. 30-6-2000)]

.

7. In every establishment where 20 or more women are ordinarily employed as contract labour there shall be provided 2 rooms of reasonable dimension for the use of their children under the age of six years. One of such rooms would be used as a play room for the children and the other as bed room for the children. For this purpose the contractor shall supply adequate number of toys and games in the play room and sufficient number of cots and beddings in the sleeping room. The standard of construction and maintenance of the creches may be such a s may be specified in this behalf by the [Deputy Chief Labour Commissioner (Central)]

[Substituted by G.S.R. 574(E), dated 30-6-2000 (w.e.f. 30-6-2000)]

.

8. The licensee shall notify any change in the number of workmen or the conditions of work to the Licensing Officer.

9. [A copy of the licence shall be displayed prominently at the premises where the contract work is being carried on]

[Inserted by G.S.R. 657, dated 11th August, 1987.]

.

10. [The license shall, within fifteen days of the commencement and completion of each contract work submit a return to the Inspector appointed under section 28 of the Act intimating the actual date of the commencement or, as the case may be, completion of such contract work in Form VI-A.]

[Inserted by G.S.R. 199, dated 25th January, 1977.]

[Inserted by G.S.R. 199, dated 25.1.1977]

[FORM VI-A]

[See rule 25(2)(viii)]

NOTICE OF COMMENCEMENT/COMPLETION OF CONTRACT WORK

I/We, Shri M/s. (Name and address of the contractor) hereby intimate that the contract work (Name of

work)..... in the establishment of the..... (Name and address of principal employer) for which licence No..... dated..... has been issued to me/us by the licencing officer (name of the headquarter), has been commenced/completed with effect from/date/on (date).

Signature of the Contractor(s)

To

The Inspector.....]

FORM VI-B

[See rule 81(3)]

Notice Of Commencement/completion Of Contract Work

1. Name of the principal.....

Employer and address.....

2. No. and date of.....

Certificate of registration.....

3. I/We hereby intimate that the contract work (Name of work) given to (Name and address of the contractor) having licence No. dated..... has been commenced/completed with effect from (date)/on (date).

Signature of the Principal Employer

To

The Inspector

Signature of the Principal Employer

FORM VII

[See rule 29(2)]

Application For Renewal Of Licences

1. Name and address of the contractor

2. Number and date of the licence

3. Date of expiry of the previous licence

4. Whether the licence of the contractor was suspended or revoked.

5. [Name of the Bank number and date for the demand draft enclosed. Date of receipt of the application with "demand draft number and date".]

[Substituted by G.S.R. 657, dated 11.8.1987]

Place.....

Date.....

Signature of the Applicant

(To be filled in office of the Licensing Officer)

Date of receipt of the application

with Treasury Receipt No. and date.

Signature of the Licensing Officer

The Contract Labour (Regulation and Abolition) Central Rules, 1971

FORM VIII

[See rule 32(2)]

Application For Temporaryregistration Ofestablishments Employing Contract Labour

1. Name and location of the establishment.

2. Postal address of the establishment.

3. Full name and address of the Principal Employer (furnish father's name in the case of individuals).

4. Full name and address of the Manager or person responsible for the supervision and control of the establishment.

5. Nature of work carried on in the establishment.

6. Particulars of contract labour:

A. Nature of work in which contract labour is to be employed and reasons for urgency.

B. Maximum number of contract labour to be employed on any day. C. Estimated date of termination of employment of contract labour.

7. [Particulars of demand draft enclosed (Name of the Union Bank, demand draft No. and date)]

[Substituted by G.S.R. 657, dated 11.8.1987]

I hereby declare that the particulars given above are true to the best of my knowledge and belief.

Principal Employer

Seal and Stamp

Time and date of receipt of application

With Treasury Receipt [* * *]

[Certain Words omitted by G.S.R. 870, dated 26.7.1974.]

Office of the Registering Officer.

FORM IX

[See rule 32(3)]

Date of Expiry

Temporary Certificate Of registration

No.....

Date.....

Government of India Office of the [Registering]

[Substituted by G.S.R. 1649, dated 16.12.1972]

Officer A Temporary Certificate of Registration containing the following particulars is hereby granted under sub-section (2) of section 7 of the Contract Labour (Regulation and Abolition) Act, 1970, and the rules made thereunder, to valid from to

1. Nature of work carried on in the establishment.
2. Nature of work in which contract labour is to be employed.
3. Maximum number of contract labour to be employed on any day.
4. Other particulars relevant to the employment of contract labour.

Signature of Registering Officer with Seal

FORM X

[See rule 32(2)]

Application For Temporary licence

1. Name and address of the contractor (including his father's name in case of individuals).
2. Date of birth and age (in case of individuals).
3. Particulars of establishment where Contract Labour is to be employed:-

(a)

Name and address of the establishment:

(b)

Type of business, trade, industry, manufacture or occupation, which is carried on in the establishment:

(c)

Name and address of the Principal Employer:

4. Particulars of contract labour:-

(a)

Nature of work in which contract labour is to be employed in the establishment:

(b)

Duration of the proposed contract work (give particulars of proposed date of commencing and ending):

(c)

Name and address of the Agent or Manager of Contractor at the work-site:

(d)

Maximum No. of contract labour proposed to be employed in the establishment on any day:

5. Whether the contractor was convicted of any offence within the preceding five years. If so, give details.
6. Whether there was any order against the contractor revoking or suspending licence or forfeiting security deposits in respect of an earlier contract. If so, the date of such order.
7. Whether the contractor has worked in any other establishment within the past five years. If so, give details of the Principal Employer, Establishment and nature of work.
8. [Amount of licence fee paid-name of the Union Bank, demand draft No. and date.]

[Substituted by G.S.R. 657, dated 11.8.1987]

9. [Amount of security deposit-name of the Union Bank, demand draft No. and date. Date of the receipt of the application with demand draft for fees/security deposits.]

[Subs, by G.S.R. 657, dated 11th August, 1987.]

I hereby declare that the particulars given above are true to the best of my knowledge and belief.

Place.....

Date.....

Signature of the Applicant

(Contractor)

(To be filled in the office of the Licensing Officer)

Date of receipt of the application with challan for fees/Security Deposit.

Signature of the Licensing Officer

FORM XI

[See rule 32(3)]

Government of India

Office Of The Licensing Officer

Licence No..... Date Fee paid Rs.

Signature of the Licensing Officer

Temporary Licence Expires on

Licence is hereby granted to under section 12(2) of the Contract Labour (Regulation and Abolition) Act, 1970, subject to the conditions specified in Annexure. The Licence shall remain in force till.....

Signature and Seal of the Licensing Officer

Date.....

ANNEXURE

The licence is subject to the following conditions:-

1. The licence shall be non-transferable.
2. The number of workmen employed as contract labour in the establishment shall not, on any day, exceed
3. Except as provided in the rules the fees paid for the grant, of the licence shall be non-refundable.
4. The rates of wages payable to the workmen by the contractor shall not be less than the rates prescribed for the Schedule of employment under the Minimum Wages Act, 1948, where applicable, and where the rate have been fixed by agreement, settlement or award, not less than the rates fixed.
5. In case where the workmen employed by the contractor per Form the same or similar kind or work as the workmen directly employed by the principal employer of the establishment, the wage rates, holidays, hours of work and other conditions of service of the workmen of the contractor shall be the same as applicable to the workmen directly employed by the principal employer of the establishment on the same or similar kind of work: Provided that in the case of any disagreement with regard to the type of work the same shall be decided by the [Deputy Chief Labour Commissioner (Central)]

[Subs, by G.S.R. 574(E), dated 30th June, 2000 (w.e.f. 30-6-2000)]

whose decision shall be final.

6. In other cases the wage rates, holidays, hours of work and conditions of service of the workmen of the contractor shall be such as may be specified in this behalf by the Chief Labour Commissioner (Central).

7. [A copy of the licence shall be displayed prominently at the premises where the contract work is being carried on.]

[Inserted by G.S.R. 948, dated 12th July, 1978.]

FORM XII

[See rule 74]

Register Of Contractors

1. Name and address of the Principal Employer.....

2. Name and address of the establishment.....

Sl. No.

Name and address of contractor

Nature of work on contract

Location of contract work

Period of contract

Maximum No. of workmen employed by contractor

From

To

1

2

3

4

5

6

7

Place.....

Date.....

Signature of the Licensing Officer

The Contract Labour (Regulation and Abolition) Central Rules, 1971

FORM XIII

[See rule 75]

Register Of Workmen Employed By Contractor

Name and address of Contractor.....

Name and address of Establishment in/under which contract is carried on

Name and location of work.....

Name and address of principal employer

Sl. No.

Name and surname of workman

Age and Sex

Father's

/ Husband's name

Designation

/ Nature of employment

Permanent home address of workman (Village and Tehsil / Taluk and Distt.)

Local address

Date of commencement of employment

Signature

/ Thumb-impression of workman

Date of termination of employment

Reasons for termination

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

FORM XIV

(See rule 77)

Employment Card

Name and address of Contractor.....

Name and address of Establishment in/under which contract is carried on.....

Nature of work and location of work.....

Name and address of Principal Employer

1. Name of the workman

.....

2. S.No. in the register of workmen employed

.....

3. Nature of employment/Designation

.....

4. Wage rate (with particulars of unit in case of piece work)

.....

5. Wage period

.....

6. Tenure of employment

.....

7. Remarks

.....

Signature of Contractor

FORM XV

(See rule 77)

Service Certificate

Name and address of Contractor.....

Name and address of establishment in/under which contract is carried on.....

Nature and location of work.....

Name and address of the workman

Name and address of Principal Employer

Age or Date of Birth

Identification Marks

Father's/Husband's name

Sl. No.

Total period for which employed

Nature of work done

Rate of wages (with particulars of unit in case of piece work)

Remarks

From

To

1

2

3

4

5

6

Signature.....

FORM XVI

[See rule 78(l)(a)(i)]

[Substituted by G.S.R. 948, dated 12-7-1978 (w.e.f. 22-7-1978).]

Muster Roll

Name and address of Contractor.....
Name and address of establishment in/under which contract is carried on.....
Nature and location of work.....
Name and address of Principal Employer
For the month of.....
Sl. No.
Name of workman
Father's/Husband's name
Sex
Dates
Remarks
12345

1
2
3
4
5
6

FORM XVII

[See rule 78(1)(a)(i)]

[Substituted by G.S.R. 948, dated 12-7-1978 (w.e.f. 22-7-1978.)]

Register Of wages

Name and address of Contractor
Name and address of Establishment in/under which contract is carried on.....
Nature and location of work
Name and address of Principal Employer.....
Wage-period: Monthly.....

Sl.

No.

Name of work-man

Sl.

No. in the register of work-menn

Designation

/ Nature of work done

No.

of days worked

Units of work done

Daily rate of wages / piece rate

Amount of wages earned

Deductions, if any, (indicate nature

Net amount paid

Signature

/ Thumb-impression of work-man

Initials of contractor or his representative

Basic wages

Dear-ness Allow-ance

Over-time

Other cash payments (Nature of payment to be in-dicated)

Total

1
2

3
4
5
6
7
8
9
10
11
12
13
14
15
16
FORM XVIII
[See rule 78(1)(a)(i)]
[Substituted by G.S.R. 948, dated 12-7-1978 (w.e.f. 22-7-1978.)]
Form Of register Of wages-Cum-Muster Roll
Name and address of Contractor
Name and address of Establishment in/under which contract is carried on.....
Nature and location of work
Name and address of Principal Employer.....
Wage-period: Weekly/Fortnightly.....
From..... To.....
Sl.
No.
Sl.
No. in Re-gister of workmen
Name of employee
Designation
/ Nature of work
Daily atten-dance/ units worked
Total atten-dances/ units of work odne
Daily rate of wages / piece rate
Amount of wages earned
Deductions, if any, (indicate nature)
Net amount paid
Signature
/ Thumb-impression of work-man
Initials of contractor or his representative
Basic wages
Dear-ness Allow-ance
Over-time
Other cash payments (Nature of payment to be in-dicated)
Total

1
2
3
4
5
6

7
8
9
10
11
12
13
14
15
16

FORM XIX

[See rule 78(1)(b)]

[Substituted by G.S.R. 948, dated 12-7-1978 (w.e.f. 22-7-1978).]

Wage Slip

Name and address of Contractor.....

Name and Father's/Husband's name of the workman.....

Name and location of work

For the Week/Fortnight/Month ending.....

1. No. of days worked

.....

2. No. of units worked in case of piece rate workers

.....

3. Rate of daily wages/piece rate

.....

4. Amount of overtime wages

.....

5. Gross wages payable

.....

6. Deductions, if any

.....

7. Net amount of wages paid

.....

Initials of the Contractor or his representative

FORM XX

[See rule 78(1)(a)(ii)]

[Substituted by G.S.R. 948, dated 12-7-1978 (w.e.f. 22-7-1978).]

Register Of Deductions For Damage Or Loss

Name and address of Contractor.....

Name and address of Establishment in/under which contract is carried on

.....

Nature and location of work.....

Name and address of Principal Employer.....

Sl.

No.

Name of workman

Father's

/ Husband's name

Designation

/ Nature of employment

Particulars of damage or loss

Date of damage or loss

Whether workman showed cause against deduction

Name of person in whose presence employee's explanation was heard

Amount of deduction imposed

No.

of instalments

Date of recovery

Remarks

First instal-ment

Last instal-ment

1

2

3

4

5

6

7

8

9

10

11

12

13

FORM XXI

[See rule 78(1)(a)(ii)]

[Substituted by G.S.R. 948, dated 12th July, 1978 (w.e.f. 22-7-1978).]

Register Of Fines

Name and address of Contractor.....

Name and address of Establishment in / under which contract is carried on

Name and location of work.....

Name and address of principal employer

Sl. No.

Name of workman

Father's

/ Husband's name

Designation

/ Nature of employment

Act/Omission for which fine imposed

Date of offence

Whether work-man showed cause against fine

Name of person in whose presence employee's explanation was heard

Wage periods and wages payable

Amount of fine imposed

Date on which fine realized

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

FORM XXII

[See rule 78(1)(a)(ii)]

[Substituted by G.S.R. 948, dated 12-7-1978 (w.e.f. 22-7-1978).]

Register Of Advances

Sl. No.

Name

Father's/Husband's name

Designation/Nature of employment

Wage period and wages payable

Date and amount of advance given

Purpose(s) for which advance made

No. of instalments by which advance to be re-paid

Date and amount of each instalment re-paid

Date on which last instalment was re-paid

Remarks

1

2

3

4

5

6

7

8

9

10

11

FORM XXIII

[See rule 78(1)(a)(iii)]

[Substituted by G.S.R. 948, dated 12-7-1978 (w.e.f. 22-7-1978).]

Register Of Overtime

Name and address of Contractor.....

Name and address of Establishment in/under which contract is carried on

Name and location of work.....

Name and address of principal employer

Sl. No.

Name of workman

Father's

/ Husband's name

Sex

Designation

/ Nature of employment

Dates on which over-time worked

Total overtime worked or pro-duction in case of piece-rated

Normal rates of wages

Overtime rate of wages

Overtime earnings

Date on which overtime wages paid

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

FORM XXIV

[See rule 82(1)]

Return To Be Sent By The Contractor To The Licensing Officer

Half year ending

1. Name and address of Contractor

2. Name and address of Establishment

3. Name and address of Principal Employer

4. Duration of contract: From to.....

5. No. of days during the half year on which-

(a)

the establishment of the principal emp-loyer had worked

(b)

the contractors' establishment had wor-ked

6. Maximum number of contract labour employed on any day during the half year:

Men Women Children Total

7. (i) Daily hours of work and spread over-

(ii)

(a)

Whether weekly holidays observed and on what day-

(b)

If so, whether it was paid for-

(iii)

Number of man hours of overtime worked-

8. Number of mandays worked by-

Men Women Children Total

9. Amount of wages paid

Men Women Children Total

10. Amount of deductions from wages, if any:-

Men Women Children Total

11. Whether the following have been provided-

(i)

Canteen

(ii)

Rest Rooms

(iii)

Drinking water

(iv)

Creches

(v)

First Aid

(If the answer is 'yes' state briefly standards provided)

Place.....

Date.....

Signature of Contractor

FORM XXV

[See rule 82(2)]

Annual Returns Of Principal Employer To Be Sent To The Registering Officer

Year ending 31st December.....

1. Full name and address of the Principal Employer:

2. Name of Establishment:

(a)

District

(b)

Postal Address

(c)

Nature of operations/industry/work carried on

3. Full name of the Manager or person responsible for supervision and control of the establishment:

4. No. of contractors who worked in the establishment during the year (Give details in Annexure):

5. Nature of work/operations on which contract labour was employed:

6. Total number of days during the year on which contract labour was employed:

7. Total number of mandays worked by contract labour during the year:

8. Maximum No. of workmen employed directly on any day during the year:

9. Total No. of days during the year on which direct labour was employed:

10. Total No. of mandays worked by directly employed workmen:

11. Change, if any, in the management of the establishment, its location or any other particulars furnished to the Registering Officer in the application for Registration indicating also the dates:

Place.....

Date.....

Principal Employer

ANNEXURE TO FORM

Name and address of the contractor

Period of contract

Nature of work

Maximum No. of workers employed by each contractor

No. of days worked

No. of mandays worked

FromTo

1

2

3

4

5

6

ANNEXURE`A'

[Inserted by G.S.R. 657, dated 11-8-1987.]

[rule 38(1)]

Sl. No.

Officers

Headquarters of the Officers

1

2

3

1

ALC(C)

Delhi

Delhi

2

RLC(C)

Ajmer

Ajmer

3

ALC(C)

Ajmer

Ajmer

4

ALC(C)

Adipur

Adipur

5

RLC(C)

Asansol

Asansol

6

ALC(C)

Asansol

Asansol

7

RLC(C)

Bombay

Bombay

8

ALC(C)

Bombay

Bombay

9

ALC(C)

Nagpur

Nagpur

10

ALC(C)

Vasco-Da-Gama

Vasco-Da-Gama

11

RLC(C)

Calcutta

Calcutta

12

ALC(C)

Calcutta

Calcutta
13
RLC(C)
Gauhati
Gauhati
14
RLC(C)
Dhanbad
Dhanbad
15
ALC(C)
Dhanbad
Dhanbad
16
ALC(C)
Chaibasa
Chaibasa
17
ALC(C)
Hazaribagh
Hazaribagh
18
RLC(C)
Hyderabad
Hyderabad
19
ALC(C)
Hyderabad
Hyderabad
20
ALC(C)
Vijayawada
Vijayawada
21
ALC(C)
Visakhapatnam
Visakhapatnam
22
RLC(C)
Jabalpur
Jabalpur
23
ALC(C)
Jabalpur
Jabalpur
24
ALC(C)
Raipur
Raipur
25
ALC(C)

Shahdol

Shahdol

26

RLC(C)

Kanpur

Kanpur

27

ALC(C)

Kanpur

Kanpur

28

RLC(C)

Chandigarh

Chandigarh

29

RLC(C)

Bhubaneshwar

Bhubaneshwar

30

ALC(C)

Bhubaneshwar

Bhubaneshwar

31

RLC(C)

Madras

Madras

32

ALC(C)

Madras

Madras

33

ALC(C)

Ernakulam

Ernakulam

34

RLC(C)

Bangalore

Bangalore

35

ALC(C)

Bellary

Bellary

36

ALC(C)

Dehradun

Dehradun

37

ALC(C)

Rohtak

Rohtak

38

ALC(C)

Jagdalpur

Jagdalpur

39

ALC(C)

Jaipur

Jaipur

40

ALC(C)

KolarGold Field

KolarGold Fields]

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